Submission to JSCEM's Inquiry into the 2025 federal election

Preface

I, like the vast majority of Australians, sincerely value the general conduct and atmosphere of elections in our country. The democracy sausage, fundraising stalls, friendly banter and a (mostly) collegiate relationship between volunteers of every political stripe – all go to giving election day an almost festive atmosphere that is the envy of most nations on earth. I will never take this for granted and hope to see it continue for my lifetime. This inquiry and the actions that will inevitably result from it, will be vital in continuing this tradition, at a time where we face a potential pivot point to a less desirable future.

I would like to commend the AEC and all its individual workers for their substantial efforts on the 2025 Federal election, especially in the highly contested seat of Bradfield NSW, to which the majority of my comments relate.

I also thank the JSCEM for the opportunity to contribute my first-hand evidence to this vital inquiry. I submit this as a concerned citizen, a volunteer for the [redacted] candidate [redacted] for Bradfield, a former volunteer for the [redacted] for North Sydney and a former volunteer for other minor parties at state and local government level. Based on this experience, I provide the following response to the Committee's Terms of Reference.

Response

TOR 1: Increase in incidents of aggressive conduct, deliberate obstruction, and intimidating behaviour towards voters, political participants, volunteers, and Australian Electoral Commission (AEC) officials

I would like to make the committee aware of the following incidents in which I was personally involved during the 2025 Federal Election. I have been involved in several elections for all three levels of government and have never before experienced such unpleasant events.

Incident 1

Date: 24/4/25

Location: Outside residence of the [redacted] Candidate for Bradfield

During the night "personal attack" signs had been erected in both directions facing away from her driveway, thus making it obvious where the candidate was residing.

While these signs had also been erected in other locations, this positioning was clearly designed to intimidate the candidate and make her fear for her safety and that of her family, and therefore to potential candidates, who lack the backing and resources of a major party (especially women), from putting themselves forward for public office. Based on this experience I would be reluctant to do so myself. Fortunately [redacted] is made of sterner stuff!

Incident 2

Date: 24/4/25

Location: Willoughby pre-poll booth

While the [redacted] candidate was having a conversation with some interested voters, a man made a comment regarding an inaccurate story circulated in the media about the candidate. He seemed to be continuing past but suddenly turned back and started moving towards the candidate while yelling loudly at her, and his body language became threatening. I stepped in between him and the candidate, held my hands palms forward, and spoke in a low calm voice to request him to stop. He then started yelling at me instead. The man was well over 6 foot tall and a large/strong build. I found him, and believe he intended to be, physically intimidating and threatening.

Incident 3

Date: 3/5/25 (Election Day)

Location: Polling booth at North Wahroonga

A volunteer handing out how to vote cards for the [redacted] candidate became offended when I politely returned one to him that he had insisted my elderly mother take. I explained to him

that she was my mother and already knew how she planned to vote. He then yelled after her "oh so you're responsible for her are you?," which confused and upset her. The campaign for the [redacted] candidate for Bradfield stresses that all volunteers were to remain positive and act in a polite manner at all times. While this is a small incident relative to others, it demonstrates that some campaigns are not "doing the work" to ensure reasonable behaviour of their volunteers.

Incident 4

Date: post-election

Location: Asquith Divisional Centre

One particular [redacted] Party scrutineer constantly tried to "bait" myself and a fellow scrutineer for the [redacted] candidate for Bradfield while we were scrutineering, i.e. attempting to get a reaction from us by making incendiary statements and belittling us. Fortunately the majority of scrutineers did not behave in this way, however again it is indicative that party volunteers are not adhering to any code of conduct outlining reasonable behaviour.

Incident 5

Date: pre-election day

Location: outside my residence/multiple residences

I had a corflute displayed for the [redacted] candidate for Bradfield inside my property boundary and facing the road. I was disappointed to see that it was forcibly removed on two occasions. The first time it was just knocked back into the bushes, the second time the cable ties were cut and the whole stand was demolished.

While out doorknocking I spoke to other electors who told me of many similar incidents around the Turramurra and Wahroonga areas. The issue was occurring so frequently that some had resorted to installing cameras and putting up signs noting that offenders were being recorded. It appeared that this was a co-ordinated campaign and therefore one wonders whether it was something organised by the [redacted] Party. If so, this is a scandalous attack on our right to political expression.

Incident 6

Date: 24/4/25

Location: Willoughby pre-poll booth

A Chinese speaker working for the [redacted] Party deliberately interrupted conversations in progress with (presumably Chinese-Australian) electors and physically dragged them away from us while speaking to them in Mandarin/Cantonese.

Incident 7

Date: 9/4/25

Location: Greengate Hotel – Ku-ring-gai Business Chamber meet the candidates event

A number of attendees booed the acknowledgement of country at the start of proceedings. This was an embarrassing and shameful display, which I fear was a result of certain political parties spruiking a narrative of division, which has resulted in the increasing and deliberate polarisation of the electorate.

TOR 2: Potential reform of safety and security arrangements, including consideration of the powers, processes, and capacity of the AEC to manage and address increasingly threatening or disruptive behaviour

The AEC's role is primarily to ensure that the election is conducted according to the electoral rules and beyond requesting observance of those rules, they should not be expected to also physically police their adherence.

In previous elections at local, state and federal level, I haven't personally experienced such issues of bad behaviour and am concerned that it represents a lurch towards US-style political campaigning, where it seems there are no boundaries to the extremes people will go to for their ideology and physical attacks on candidates have occurred.

To ensure that such incidents don't become the norm for our elections, and that we go back to the collegiate and calm atmosphere I have experienced at other elections, I make the following suggestions. Each party or candidate (in the case of non-party-aligned candidates only) must

1. provide a code of conduct to all volunteers and other candidate/party representatives, that they must formally agree to adhere to for the duration of the campaign and count. The code of conduct should be submitted to the AEC for approval.
2. nominate a person who is available throughout the campaign to police their own staff and volunteers, and who bears responsibility for the conduct of their party's representatives over the period.

3. lodge a substantial bond for each booth where their candidate(s) are represented.

Should incidents occur, the AEC can then inform the nominated official and request they address the matter. If they fail to do so the bond would be forfeited. This may help to ensure that candidate representatives always act in a manner conducive to safe and secure elections free from intimidating or disruptive behaviour.

It may also be necessary for specifically trained police to form part of "flying squads" during the election so that any incident where violence or the potential for violence occurs, they can rapidly be called in to deal with the issue and restore calm.

Consideration should also be given to the amount of signage and staffing at polling places. I feel that at some polling booths this was excessive from many participants and led to electors feeling overwhelmed and intimidated and unable to make a coherent choice. Sometimes it was difficult for voters to see where the entry to the booth was due to the proliferation of signage and candidate reps which led to tension and disharmony in some cases.

TOR 3: The suitability and potential reform of measures to ensure universal voter access, including polling booth availability and location, early voting, remote polling, and postal voting arrangements

Prepoll

While I fully support universal voter access and recognise the need to provide various different options for electors to ensure they are able to vote, I feel that the option of pre-poll has been over-exploited and the use of it needs to be reined in. I volunteered on pre-poll in two electorates and had many conversations with electors at both. By far the vast majority of those I spoke to had no particular need to vote at pre-poll, they just didn't want to have to queue up on election day (and in some cases preferred to use working hours to cast a vote rather than sacrifice any of their weekend). The AEC does not ask for any proof that the elector is unable to attend on election day and this has led to abuse of the right. Voting pre-poll is an issue because:

1. The election campaign is not yet complete. In the last election the coalition had not even held its launch by the time pre-poll commenced. I fear if this trend is allowed to go unchecked there will be very few people voting on election day itself, which may permit bad actors to release less-palatable policies just before election day, knowing that the majority of votes are already "in the bag."
2. The current situation disproportionately disadvantages minor parties and independent candidates, who cannot rely on existing "brand recognition" like a

major party, and who rely on grassroots momentum building and staffing by volunteers.

I therefore propose that:

- Pre-poll be reduced to a maximum of one week duration
- Evidence should be requested of the reason why the elector cannot attend on election day (e.g. travel booking, letter from employer confirming need to attend place of employment etc.)
- Parties and candidates should be required to have released details of all policies and made all major announcements prior to the start of pre-poll

In tandem, electors should be encouraged back to vote on election day. A few suggestions include:

- An engaging advertising campaign (please ditch the current insipid "one size fits all" AEC ads and make a series of advertisements targeting particular groups with messages that appeal particularly to them) that stresses the fun and community of attending on election day (along the lines of the Australia Day lamb ads for example). This would build pride in Election Day Australia-style and encourage people to participate by generating FOMO.
- Notifications within the local area (via letterbox drop) of locations of polling booths. I managed a booth on election day that was very poorly attended, while there were huge queues just a short distance away. Even people living in the same street were unaware that the booth existed. Many of the people I saw attend were people I had personally doorknocked and told about the location in passing.
- Sufficient staffing of booths to ensure people do not have to queue for too long
- A simple web-based app could be made available to show real-time what the queue length is at each booth so people can check if it is a good time to attend or not.

Postal voting

I am concerned at the confusion caused by parties and candidates sending postal vote applications to electors and requesting that they be returned to the said party or candidate instead of to the AEC. This is nothing more than a data collection exercise and electors will be mercilessly spammed with party material once they return the form. Application forms for postal votes should only be sent by and returned directly to the AEC.

Aged care facility voting

Many residents in aged care are still well and truly interested in and capable of voting and should be given every opportunity to do so. However protections must be put in place to ensure that residents who may be vulnerable to manipulation are protected and allowed to vote free from undue influence of others, including the owners of the facilities where they reside.

I propose the following:

1. That aged care facilities be required to give either equal access or no access to all candidates. Some facilities have only allowed the [redacted] candidate to visit insisting that they were "personally invited" and that this is what is required to gain access.
2. Supporters of any candidate should not be permitted to "assist" residents with voting. If residents are not able to attend a polling booth the facility should ensure that they assist the resident to obtain a postal vote and assist them to send the vote to the AEC, but filling the form out should be left to the resident alone. A family member of mine was approached in aged care and cajoled into voting for the [redacted] candidate by party representatives who failed to disclose their affiliation. This is completely unacceptable.
3. The mechanism whereby residents who no longer have capacity to make an informed decision are removed from the voter rolls needs to be examined as currently the system is open to manipulation.

TOR 4: Reforms to address the ongoing threats of interference in our electoral system, both foreign and domestic

Results of recent US elections and Brexit should greatly concern us, in that outcomes were attained that were not in the best interests of those that voted for them. Proponents and candidates were allowed to make completely unfounded and baseless claims about the driving forces behind issues that concerned voters and the way to solve them. Furthermore, there is evidence to suggest that foreign entities deployed technology to ensure that these false claims and solutions were artificially amplified across social media. All means necessary should obviously be put in place to ensure this is not allowed to occur in any Australian election, including

1. Truth in political advertising

I am sure that the majority of Australians would be shocked to learn that there are more protections for truth in the advertising of toilet paper than there are for the marketing of policies that impact literally every aspect of our lives and livelihoods, and those of future generations.

A national standard for honesty in political advertising should be implemented, requiring that all campaign materials, including TV, radio, flyers, signage, social media content and electronic and hard copy mail, to guarantee they present only truthful information. These materials should be limited to promoting the candidate, their policy positions, and, where applicable, their political affiliation. "Attack" materials based on personal matters and outright lies purporting to disclose the funding/backing/background/activities or beliefs of any candidate need to be stopped. The offensive slurs targeting the [redacted]

candidate in Bradfield, which were displayed on signage and in mail box drops by the [redacted] Party, are a case in point. Because the party had nothing negative with which to target the opposing candidate, a story was manufactured, blown out of all proportion and given credence by some of the more credulous or biased elements in the media. [redacted] Party supporters were then encouraged to weaponise the incident by promulgating confected outrage in as vocal and offensive way as possible, both in person and on social media.

The standard must

- operate continuously i.e. not just during any election campaign.
- include transparent processes for addressing and penalising false or misleading statements and
- nominate a body to monitor adherence with the power to impose significant penalties for breaches. Perhaps this could be an extension of AEC's responsibility, but must be adequately resourced irrespective of the body nominated/convened.

2. Technology

A significant effort must be made to investigate and limit any promulgation of false information on social media by either local or foreign agents. This should not be seen as an attempt to limit free speech, but rather to limit the spread of knowingly false information by bad actors. AI generated or manipulated media must be banned completely.

3. Civics education

When talking to electors, I am sometimes surprised by the lack of knowledge of how politics generally and elections specifically work in our country. I am also surprised by how many people have expressed the attitude to me that there is no point in them voting. This is a very sad state of affairs for any democratic society. Civics education needs to be increased both in schools and among the adult population. This would help to fight disinformation that is sometimes promulgated among those less engaged voters. For example, during the last NSW state election, [redacted] party volunteers were routinely telling electors "you only have to number one box." While that is technically a true statement, in this case it was a deliberate and disingenuous ploy to encourage electors to waste their preferences, knowing that the [redacted] Party would benefit from its traditionally high first preference vote.

TOR 5: the composition of the Parliament as a whole, including: the length of the parliamentary term; the potential for fixed terms; and the number of elected representatives relative to the growth in population and the electorate

Fixed terms should be introduced so that it is not possible for governments to use the calling of an election at an expedient time for political advantage. This provides a more level playing field for independent candidates and minor parties, who rely on grassroots momentum building for their campaigns, which need long-term certainty of timing to be effective.

While I support 4-year terms in a theoretical sense, I don't support moving to 4 year terms until the other items in this submission are addressed – e.g. fairness in political donation laws, truth in political advertising etc. Under the current circumstances it is still too easy to get a bad government elected and the extra year until they can be ousted would be onerous.

In the meanwhile I would like to encourage the adoption of 5 and 10 years plans for all matters of significant national importance. This should be agreed across the aisle so that subsequent governments cannot simply undo things due to an ideological conflict. The so called "Carbon Tax" was a good case in point. The "tax" was doing its job in reducing emissions and did not have any of the calamitous effects that the Coalition argued it would, and yet they were able to unwind it due to an ideological belief (and the demands of party donors). All those taxpayer dollars wasted and Australia pulled behind in the race to a clean energy transition, which will massively advantage us as a country. Five and 10 year plans would allow for long-term thinking and decision making instead of the short-termism and election result focus that currently predominates.

As a former elector in the seat of North Sydney, I was extremely disappointed to see our much-loved seat abolished prior to the last election. Predicted population growth was certainly not taken into account when this decision was made. I believe a review of the current decision process with respect to redrawing of boundaries is overdue. The decision to abolish North Sydney was convenient for the major parties given it enabled them to oust a cross-bench MP without having to defeat them at an election. I am concerned that undue pressure may have been put on the AEC to decide North Sydney's fate in the negative. I would appreciate some reassurance that this was not, and cannot ever be, the case.

I would like to propose one further rule that relates to "composition of parliament." Unless there is a case of some impropriety, illegal activity, illness or other reason for a Prime Minister to step down from the leadership, they should remain leader until the subsequent election, prior to which their party may vote to elect a different nominee for PM should they be successful at that election. Leadership changes in Australia have become too disruptive over the last 15 years and have been caused by ideological spats within a party rather than

any actual crisis of government. By removing the ability to change PM, party members will hopefully vote more carefully and with longer term consideration of who is best placed to serve as leader for the long term and stop the political in-fighting that is getting in the way of good governance. MPs and senators need to be reminded that their time in parliament is to be spent serving the best interests of the Australian people, not shoring up their chances of re-election, and certainly not focussed on the internecine struggles within their party. Similarly, can we please eliminate the constant re-naming of government departments, ministries and ministerial reshuffles? Surely resources can be better spent on the NDIS, Medicare, education, infrastructure or community services themselves than on needless changes to the departments and ministers that hold responsibility for them?

Post-script: Mechanism for voting

Lastly, I feel it is important to consider the current mechanism for voting in Australian elections (that is, writing on a slip of paper with a pencil). I respect this system and its ability to deliver a result that is unimpeachable, however just because it has served us well to date, does not exempt it from scrutiny and consideration of other options that may better suit a changing world. The number of informal votes in Bradfield relative to the final result should be enough to raise this as an area of concern.

My experience scrutineering in Bradfield highlighted a number of issues with the current completely manual process, among those being:

- Electors being disenfranchised where their vote was considered informal due to, for example,
    - Unclear writing
    - High possibility of inadvertent mistakes (duplicate or missing preference number, adding a mark other than a number, other marks on the paper)
- The inordinate length of time and resources required to count and recount (and recount again) over 100,000 pieces of paper over a 2 week period
- The ensuing case brought to the court of disputed returns, resulting in another huge waste of resources

While I don’t support the concept of online voting, due to the inherent possibility of interference by bad actors (or even the perception that this may be occurring), I don’t think that rules out some form of technology-aided voting.

Suggestion 1

Could booths in electorates where a close result is expected have un-networked on-screen voting available – i.e. instead of electors receiving a pencil and paper they are instead given a QR code and access to a laptop. They scan their QR code and a voting form (identical to

the paper form) is displayed on the screen. They then enter the number of their preference against each candidate and click enter. The elector would then go to a printer and again scan their QR code to receive a copy of their voting form printed out. They can check this form is correct before lodging it in the box.

This system would have the advantage of

1. eliminating the opportunity for informal voting entirely as the form will only print if all boxes are numbered with consecutive numbers.
2. recording votes in the background on each individual laptop, which can then be download to an external hard drive at the end of the day and used as an instantaneous tally of votes, which is then checked against the hard copies in the boxes.
3. Being impervious to “hacks’ or other interference
4. Greater speed and accuracy in highly contested electorates

The system would need to be thoroughly tested prior to implementation and would require resources for development, but I feel this would be outweighed by the saving of resources in the long run, the greater voter enfranchisement and reduction in opportunity to question the process during protracted counts.

Suggestion 2

If paper voting really must continue, could the AEC consider the option of OCR (optical character recognition) assistance in the processing of votes? This is a tried and tested technology that has been in use for many years by organisations that process huge numbers of pieces of paper (for example share registries) and is very accurate. It would also allow for AEC officials and scrutineers to examine voting papers electronically on a first pass, which is much more efficient and comfortable for all participants who can take their time to view each scan and ensure they agree it belongs in the electronic “pile” they are reviewing. Of course any papers of concern can then be called from the relevant box and examined by returning officers and scrutineers. It would be a much faster and more accurate means of tallying and scrutinising votes than the current processes of repetitious unsealing of boxes, counting, batching, recording and resealing that occurs currently.